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Provision of September 26, 2024
Register of provisions
n. 589 of September 26, 2024

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting today, attended by
Prof. Pasquale Stanzione, president, Prof.
Ginevra Cerrina Feroni, vice president, Dr.
Agostino Ghiglia and Attorney Guido Scorza, members, and
Secretary General Fabio Mattei;

HAVING REGARD to Regulation (EU) 2016/679 of the European Parliament
and of the Council, of April 27, 2016 (hereinafter, "Regulation");

HAVING REGARD to the Code regarding the protection of personal data, containing provisions for the
adaptation of the national legal system to Regulation (EU) 2016/679 (Legislative Decree of June 30,
2003, n. 196, as amended by Legislative Decree of August 10, 2018, n. 101, hereinafter "Code");

HAVING REGARD to the complaint submitted pursuant to Article 77 of the Regulation by Ms. XX
against CI & DI Food s.r.l. – a limited liability company with a sole shareholder;

HAVING EXAMINED the documentation on file;

HAVING REGARD to the observations made by the Secretary General pursuant to Article 15 of the
Guarantor's Regulation n. 1/2000;

REPORTING Prof. Pasquale Stanzione;

PREMISED

1. The complaint against the Company and the investigative activity.

With a complaint dated September 17, 2022, Ms. XX alleged presumed violations of the Regulation by
CI & DI Food s.r.l. – a limited liability company with a sole shareholder (hereinafter, the Company),
regarding the failure to respond to the exercise of the right of access to her personal data processed
by the company in the context of the employment relationship, specifically the extract from the Unique
Labor Book and the "summary of data relating to working attendance [...] acquired and recorded via
electronic badge for the entire duration of the employment relationship."

In particular, the complainant stated that, following the exercise of the right of access carried out
through a communication sent via certified email on 09/08/2022 to the address XX by the
complainant's lawyer, on behalf of the latter, the Company did not provide any response.

The Company, in responding to an invitation to comply with the requests of the interested party sent by
the Authority on September 6, 2023, stated in a note dated September 28, 2023 that:

- a. it intended to make "a spontaneous adherence to the access request [made by the complainant],
attaching herewith the personal data processed in the context of the employment relationship, as
requested, specifically: Extract from the Unique Labor Book [...]; Data extracted from the software
connected to the time stamping device 'so-called badge';
- b. "the failure to send the documents requested by the [complainant] via certified email on 09.08.2022
[...] was the result of a mere oversight, considering that in the days preceding said request there had
been a series of exchanges [between the Company and the complainant's lawyer], regularly and
promptly responded to by the undersigned";
- c. "in particular [...] following the request made [...] on 22.06.2022 [by the complainant] after having
already made those documents available [to the complainant herself] in paper form at the workplace
[...], with two certified email responses dated 30.06.2022 and 04.08.2022 [...] provided adequate and
timely responses to the requests made [...]. This fact demonstrates the collaborative spirit" of the
Company in the proceedings before the Guarantor.

2. The initiation of the procedure for the adoption of corrective measures and the Company's defenses.

On January 10, 2024, the Office notified the Company of the alleged violations of the Regulation found, with reference to Articles 12 and 15 of the Regulation, pursuant to Article 166, paragraph 5, of the Code.

In defensive memoranda sent on February 9, 2024, the Company stated that:

- a. "the failure to send the documents requested by the [complainant] [...] via certified email on 09.08.2022, within the deadlines set by Article 12 GDPR, was the result of an oversight attributable to a mere human error, also ascribable to the reduced presence of the [legal representative of the Company], the only one authorized to view the certified email box, at the workplace due to the holiday period. The absence of intent is evidenced by the fact that in the days preceding the aforementioned request there had been a series of exchanges of certified emails between CI & DI Food and [the complainant's lawyer], regularly and promptly responded to by the undersigned, as per documentation already communicated" (note 9/1/2024, p. 2);
- b. regarding the degree of severity of the violation "the request for access to personal data under Article 15 GDPR does not constitute the only free tool available to the worker (or former worker) to access a copy of the documentation related to their employment position, and even a failure to respond within the terms of Article 12 GDPR does not preclude the worker from resorting to other legal tools, also free, to obtain the requested documentation (e.g., by contacting a trade union assistance center)" (cited note, p. 2);
- c. "no definitive and irreparable damage has occurred to the rights and freedoms of the interested party, as the requested data was transmitted following the timely response to the invitation to comply made by this Authority" (cited note, p. 3);
- d. The Company "acknowledged the human error that led to the failure to respond to the request made by the [claimant] within the terms established by the GDPR, and deemed it necessary to implement the adopted technical and organizational measures, and to incorporate data protection principles and operational instructions for those responsible for processing, within the Company Regulation" (cited note, p. 3);
- e. "In order to facilitate the proper management and fulfillment of access requests that may be received, the Data Controller deemed it necessary to assign a specific task and provide written instructions to the employee with administrative duties, to implement support staff for managing requests for the exercise of rights by data subjects" (cited note, p. 4 and Annex 10);
- f. "Since the review process of the company regulation was concluded on 06.02.2024 with the publication on the company bulletin board, the updating and revision of company documentation is currently underway, including information on the processing of personal data addressed to the various categories of data subjects. Following this revision, a reference to the email address XX (constantly monitored [...]) will be prominently included in all models of information on the processing of personal data already used by the Company in relations with clients, suppliers, employees, and users of the website, as a point of contact to which data subjects can direct requests for the exercise of rights under Articles 15-22 GDPR" (cited note, p. 4);
- g. "In order to promote compliance with the instructions [...], a training course has been scheduled for February 21, 2024, aimed at all employees, covering", among other things, "General principles regarding data protection under the GDPR and Legislative Decree 196/2003 and subsequent amendments" (cited note, p. 4);
- h. The Company therefore "disputes the violation of the duty of fairness established by Article 5, paragraph 1, letter a) of the Regulation, having demonstrated not only that the failure to respond to the request made by the [claimant] within the terms provided by Article 12 GDPR (which also represents an isolated case) occurred due to a single human error; but also the correct approach that every Data Controller must develop in similar circumstances" (cited note, p. 5).

During the hearing held on March 26, 2024, at the request of the Company, the latter finally stated that:

- a. "Even before the entry into force of Regulation EU 2016/679, under the previous rules, the Company had paid particular attention to the proper management of personal data processing processes";

b. "The visibility of the certified email (PEC) box, for company policy, is reserved solely for the legal representative of the company, and was, at the time of the events, only viewable from the computer on site, and therefore when the legal representative was physically present in the office";

c. "Given that the access request was submitted during the summer holiday rotation period, and in light of the described methods of monitoring the PECs, the claimant's request was not seen due to a mere error. The Company therefore did not intend to fail to respond to the request for the exercise of the right of access, as the response would certainly have been provided if the request via PEC had been viewed";

d. "After this episode, the Company first reviewed all privacy aspects of the personal data processing carried out in the performance of its activities and, furthermore, initiated a verification and revision process of the management of data processing processes. Regarding the management of PECs, currently, the legal representative, who has downloaded the Aruba application on their smartphone, is promptly notified of their arrival via an alert, also to further reduce the risk of a recurrence of the episode in this proceeding";

e. "The Company has updated the company regulation and organized a training course for employees, which was regularly held on February 21, 2024 (as mentioned in the defense memoranda) dedicated to the processing of personal data".

3. The outcome of the investigation and the procedure for the adoption of corrective and sanctioning measures.

3.1. Outcome of the investigation. Violation of Articles 12 and 15 of the Regulation.

As a result of the examination of the statements made to the Authority during the procedure as well as the documentation acquired, it appears that the Company, as the data controller, has carried out certain processing operations related to the claimant that are not compliant with the regulations on personal data protection.

In this regard, it is highlighted that, unless the act constitutes a more serious offense, anyone who, in a proceeding before the Guarantor, falsely declares or certifies news or circumstances or produces false acts or documents is liable under Article 168 of the Code "Falsehood in declarations to the Guarantor and interruption of the execution of the tasks or exercise of the powers of the Guarantor".

On the merits, it emerged that the Company did not respond to the request for the exercise of the right of access to certain personal data processed in the context of the employment relationship submitted by the claimant on 09/08/2022 to the Company's PEC address. After the submission of the complaint to the Guarantor, the Company cooperated with the supervisory Authority and sent the requested data with communication of

28/9/2023 addressed also to the complainant.

Pursuant to Article 15 of the Regulation, "The data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, to obtain access to the personal data." Regarding the manner in which the data controller must respond to the data subject, the same article specifies that "The data controller shall provide a copy of the personal data undergoing processing." Furthermore, Article 12 clarifies that the response to requests for the exercise of rights provided by the Regulation (including the right of access) must be provided "without undue delay and, in any event, no later than one month after receipt of the request. This period may be extended by two months, if necessary, taking into account the complexity and number of requests. The data controller shall inform the data subject of such an extension and the reasons for the delay within one month of receiving the request. [...]. If the data controller does not comply with the request of the data subject, the data controller shall inform the data subject without delay, and at the latest within one month of receiving the request, of the reasons for the non-compliance and the possibility of lodging a complaint with a supervisory authority and seeking judicial remedy."

In light of the aforementioned provisions, the Company has therefore failed to provide the data subject with a response to the request for a copy of the Single Labor Book and the attendance records made

using the company badge and has transmitted the information only after receiving an invitation to comply from the Supervisory Authority, more than thirteen months after the request, in violation of Articles 12 and 15 of the Regulation.

The justification provided by the Company during the proceedings before the Authority to explain the failure to respond to the requests of the data subject, namely the occurrence of “a mere error” due to the fact that at the time of the event subject to complaint only the legal representative of the Company had access to the certified email (Pec), even during the summer shifts, is not sufficient to absolve the data controller of the obligation to respond to requests for the exercise of rights, by implementing measures, including organizational ones, aimed at facilitating their submission (see Article 12, paragraph 2 of the Regulation).

Nor can it be considered, as argued in the defense briefs, that “other legal instruments, even free of charge, would have been abstractly available to obtain the requested documentation,” given that Article 15 of the Regulation does not impose any limitations regarding the information related to the data subject that may be subject to access and considering that the data related to the attendance records made with the company badge, which is the subject of the access request, are exclusively available to the employer.

The Authority, in any case, acknowledges that during the proceedings the Company introduced a notification mechanism for certified emails to highlight their receipt in the relevant certified email inbox. It is also noted that the Company has adopted some measures, including organizational ones, to facilitate the exercise of rights by data subjects, including the indication of a dedicated email address included in the information models provided to data subjects (employees, customers, suppliers, website users).

The Company, therefore, in the terms described above, has not complied with the obligation to respond to the data subject following the exercise of the rights provided by the Regulation - in this case, the right of access pursuant to Article 15 - within the terms and in the manner prescribed by Article 12 of the Regulation (in relation to similar cases, see, among the most recent: Provision 24/4/2024, no. 245, at www.garanteprivacy.it, web doc no. 10018813; Provision 24/4/2024, no. 246, web doc no. 10021452; Provision 18/7/2023, no. 318, web doc no. 9929053).

Instead, the archiving of the procedure is ordered in relation to the alleged violation of Article 5, paragraph 1, letter a) of the Regulation, following the elements provided by the Company in the defense briefs and during the hearing.

4. Conclusions: declaration of unlawfulness of the processing. Corrective measures pursuant to Article 58, paragraph 2, Regulation.

For the reasons stated above, the Authority believes that the statements, documentation, and reconstructions provided by the data controller during the investigation do not allow for overcoming the observations notified by the Office with the initiation act of the procedure and are therefore unsuitable to allow for the archiving of the present procedure, nor do any of the cases provided for by Article 11 of the Garante Regulation no. 1/2019 apply.

The processing of personal data carried out by the Company, specifically the failure to respond to requests for access to personal data submitted by the complainant within the terms provided by the law, is indeed unlawful, as stated above, in relation to Articles 12 and 15 of the Regulation.

The violation established in the terms of the reasoning cannot be considered “minor,” taking into account the nature of the violation concerning the exercise of the rights of the data subject, the seriousness and duration of the violation itself, the degree of responsibility, and the manner in which the supervisory authority became aware of the violation (see Recital 148 of the Regulation).

The Authority has also taken into account the average level of severity of the violation in light of all relevant factors in the specific case, and in particular the nature, severity, and duration of the violation, considering the nature, purpose, or aim of the processing in question as well as the number of affected individuals harmed by the damage and the level of damage they suffered. The Authority has also taken into account the criteria related to the intentional or negligent nature of the violation and the categories of personal data involved in the violation as well as the manner in which the supervisory authority became aware of the violation (see art. 83, par. 2 and Recital 148 of the Regulation). It is finally believed that the conditions set forth in art. 17 of the Regulation of the Garante no. 1/2019 are met.

5. Adoption of the injunction order for the application of the administrative pecuniary sanction and accessory sanctions (arts. 58, par. 2, lett. i), and 83 of the Regulation; art. 166, comma 7, of the Code). The violation of arts. 12 and 15 of the Regulation entails the application of the administrative sanction provided for by art. 83 of the Regulation. The Garante, pursuant to art. 58, par. 2, lett. i) of the Regulation and art. 166 of the Code, has the power to impose an administrative pecuniary sanction provided for by art. 83 of the Regulation, through the adoption of an injunction order (art. 18, l. 24.11.1981, no. 689), in relation to the processing of personal data carried out by CI & DI Food s.r.l. – a limited liability company with a sole shareholder, whose illegality has been established as described above.

It is deemed necessary to apply paragraph 3 of art. 83 of the Regulation where it states that “If, in relation to the same processing or to related processing, a data controller [...] violates, intentionally or negligently, various provisions of this regulation, the total amount of the administrative pecuniary sanction shall not exceed the amount specified for the most serious violation,” the total amount of the sanction is calculated so as not to exceed the maximum penalty provided for by the same art. 83, par. 5.

With reference to the elements listed in art. 83, par. 2 of the Regulation for the purpose of applying the administrative pecuniary sanction and its quantification, considering that the sanction must “in any case [be] effective, proportionate and dissuasive” (art. 83, par. 1 of the Regulation), it is represented that, in this case, the following circumstances have been considered:

a) regarding the nature of the violation, it involved cases punished more severely under art. 83, par. 5 of the Regulation (rights of the data subjects); concerning the severity of the violation, the nature of the processing related to the exercise of the right of access to one's personal data has been taken into account; with regard to the duration of the violation, the extensive duration of the violation itself (more than one year) has been deemed relevant;

b) with reference to the intentional or negligent nature of the violation and the degree of responsibility of the controller, the negligent conduct of the Company and its degree of responsibility, which did not comply with the data protection regulations concerning multiple provisions, have been considered;

c) in favor of the Company, account has been taken of the cooperation with the supervisory authority, the late submission of the response to the access request after learning of the filing of a complaint with the Garante, the fact that the established violation concerned only the complainant, and the adoption during the proceedings of measures aimed at facilitating the exercise of rights by the data subjects.

It is also believed that the economic conditions of the offender, determined based on the revenues obtained by the Company with reference to the abbreviated financial statements for the year 2023, are relevant in this case, considering the aforementioned principles of effectiveness, proportionality, and dissuasiveness to which the Authority must adhere in determining the amount of the sanction (art. 83, par. 1, of the Regulation). Lastly, account is taken of the amount of sanctions imposed in similar cases.

In light of the above elements and the assessments made, it is deemed appropriate, in this case, to apply to CI & DI Food s.r.l. – a limited liability company with a sole shareholder, the administrative sanction of payment of an amount equal to 4,000 euros (four thousand).

In this context, it is also believed that, pursuant to art. 166, comma 7, of the Code and art. 16, comma 1, of the Regulation of the Garante no. 1/2019, the publication of this provision on the Garante's website should proceed. This is in consideration of the type of violations established that concerned provisions related to the exercise of the rights of the data subject, which constitute an expression of the general principles of fairness and transparency.

ALL OF THE ABOVE CONSIDERED, THE Garante

notes the illegality of the processing carried out by CI & DI Food s.r.l. – a limited liability company with a sole shareholder, represented by its legal representative, with registered office at Via delle Cerbaie, 70/72, Altopascio (LU), C.F. 02382190466, pursuant to art. 143 of the Code, for the violation of arts. 12 and 15 of the Regulation;

ORDERS

pursuant to art. 58, par. 2, lett. i) of the Regulation, CI & DI Food s.r.l. – a limited liability company with a sole shareholder, to pay the sum of 4,000 euros (four thousand) as an administrative pecuniary sanction for the violations indicated in this provision;

ORDERS

therefore to the same Company to pay the aforementioned sum of €4,000 (four thousand), according to the methods indicated in the attachment, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts pursuant to Article 27 of Law No. 689/1981. It is noted that pursuant to Article 166, paragraph 8, of the Code, the offender retains the right to settle the dispute by paying – always according to the methods indicated in the attachment – an amount equal to half of the imposed sanction, within the term provided for the submission of the appeal as indicated below in Article 10, paragraph 3, of Legislative Decree No. 150 of September 1, 2011;

ORDERS

- a) pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Regulation of the Guarantor No. 1/20129, the publication of the injunction order on the Guarantor's website;
- b) pursuant to Article 154-bis, paragraph 3, of the Code and Article 37 of the Regulation of the Guarantor No. 1/2019, the publication of this provision on the website of the Authority;
- c) pursuant to Article 17 of the Regulation of the Guarantor No. 1/2019, the annotation of the violation and the measures adopted in accordance with Article 58, paragraph 2, of the Regulation, in the internal register of the Authority provided for by Article 57, paragraph 1, letter u) of the Regulation.

Pursuant to Article 78 of the Regulation, as well as Articles 152 of the Code and 10 of Legislative Decree No. 150/2011, an appeal against this provision may be submitted to the ordinary judicial authority, with a petition filed at the ordinary court of the place identified in the same Article 10, within thirty days from the date of communication of this provision, or sixty days if the appellant resides abroad.

Rome, September 26, 2024

THE PRESIDENT

Stanzione

THE REPORTER

Stanzione

THE SECRETARY GENERAL

Mattei